



Maritime &
Coastguard
Agency

MARINE GUIDANCE NOTE

MGN 425 (M+F)

Amendment 3

Assessment of Risks for those sleeping on "Dead Ships"

Notice to all Shipowners, Masters, Skippers, Fishermen and Crew.

This notice should be read in conjunction with the Merchant Shipping (Work in Fishing Convention Regulations 2018 (ILO 188) MGN 587 (M+F) Amendment 1 ILO Work in Fishing Convention, Health and Safety responsibilities, MGN 413 (F) Amendment 2 Voluntary Code of Practice for Employment of Non-European Economic Area (EEA) Fishing Crew, MGN 636 Amendment 3 Merchant Shipping and Fishing Vessels (Health and Safety at Work) Regulations 1997, MGN 312 (F) Liquid petroleum gas and diesel fuelled appliances, and the Code of Practice for the Safety Fishing Vessels of Less than 15m Length Overall sections 5.4 and 6.8.

This notice replaces MGN 425 (M+F) Amendment 2.

Summary

The purpose of this notice is to draw the attention of owners and crew to the inherent dangers on vessels not properly equipped for overnight sleeping onboard and to give guidance to mitigate the risks. The main points are:

- ensuring a risk assessment is carried out and procedures are in place to deal with any emergencies;
- ensuring that escape routes are kept clear and are known by the crew;
- checking that alarm systems work both on shore and ship's power and that the crew know how to check that they are;
- ensuring that fire precautions are being adhered to.

This notice should be read in conjunction with the latest amendments to MGN 413 Amendment 2, The Code of Practice for the Safety of Small Fishing Vessels of less than 15m Length Overall, Section 5.4 Fire Prevention, Section 6.8 and MGN 636 Amendment 3 (M), Section 6 and replaces MGN 425 Amendment 2 (M+F).

In amendment 2, MCA removed the incorrect reference made to the annex in MGN 413 Amendment 1 and updated it to reflect the latest amendments to MGN 413 and makes reference to The Code of Practice for the Safety of Small Fishing Vessels of less than 15m Length Overall, Section 5.4 Fire Prevention, Section 6.8 Carbon Monoxide Alarms and MGN 636 (M) amendment 3.

1. Introduction/background

1.1 Incidents have been reported where fatalities have occurred through seafarers or crew have been living or temporarily sleeping on board vessels and fishing vessels, whilst alongside in port, sometimes without the knowledge or agreement of the vessel owner, Master, Skipper or Port Authority.

1.2 The MCA is extremely concerned about incidents where safety systems and precautions onboard, intended for use at sea, were proved to be inadequate for use when the vessel's own power generation systems were shut down ("dead ship"). There have also been accidents where, luckily, there have been no fatalities. These range from fires to flooding, or where vessels have been in ("cold lay-up") and have been used as "accommodation", without appropriate safety measures in place.

1.3 The purpose of this note is to provide guidance on the minimum standards that are deemed acceptable for vessels not normally equipped for onboard sleeping such as some fishing vessels, ferries and dredgers. This applies to vessels greater than 24m in length and less than 500 gross tons as well as those under 24m. The Codes of Practice for the Fishing Industry, have been produced with the support of all UK Fishing Federations in consultation with the Fishing Industry Safety Group (FISG), to address health and safety concerns.

2. Assessment of Risks

2.1 A properly structured assessment of risks to crew sleeping onboard a vessel that has been shut down overnight should be carried out and should consider, as a minimum:

- Security of moorings
- Vessel emergencies such as fire and flooding
- The possibility of a noxious atmosphere (i.e. carbon monoxide) developing and fitting of appropriate alarm systems
- Awareness training on the impacts of rerouting power supplies to run generators or heating, their impact due to lack of ventilation leading to noxious atmospheres or electrical faults electrocution / electrical fires.
- Use of any portable electrical equipment such as electrical heaters, mobile phone / power banks, tablets / laptops etc.
- Medical casualties
- Loss of stability
- Response to actions of other vessels
- Means of contacting rescue or other authorities in an emergency
- Means of dealing with pollution
- Effects of extreme weather.

2.2 Many of these functions are, in larger ships, traditionally provided by personnel being on duty overnight. In smaller vessels this is not always practical and other means of achieving the same effect, which can attract the attention of sleeping crew, are needed. This should include a method of communication between the vessel and port authorities (such as a mobile telephone).

2.3 The Master/Owner should issue guidance and conduct a properly structured assessment of risks to crew sleeping onboard all vessels that are moored alongside and have been shut down overnight. Where such risks are identified appropriate procedures should be put in place to mitigate them.

2.4 The Master/Owner should ensure that all crew members know how to attract the attention of the emergency services (e.g. dial 999 or contact the harbour authority).

2.5 Refer to MGN 636 (M) Amendment 3, Section 6 for further guidance on risk assessments for Merchant Shipping and Fishing Vessels and the fishing vessel risk assessments and safety management systems.

3. Alarms

3.1 It is recommended that all vessels should have fire (smoke) and bilge alarms fitted with at least two independent power sources. The alarm should be so fitted that it can be heard within the accommodation in areas where crew may be sleeping.

3.2 If the vessel is operating on shore power it should be ensured that any alarm systems will operate on that power or a backup system provided to ensure that the alarms will work.

3.3 It is strongly recommended that the alarm systems be capable of detecting, not only smoke and high bilge levels but noxious and flammable gases.

3.4 A means of setting off the alarm from outside the accommodation should be considered.

3.5 There should be a means for those onboard to contact the emergency services to raise the alarm, such as a mobile phone.

3.6 Refer to The Code of Practice for the Safety of Small Fishing Vessels of less than 15m Length Overall, Section 6.8 Carbon Monoxide Alarms for further guidance.

<https://www.gov.uk/government/publications/the-code-of-practice-for-the-safety-of-small-fishing-vessels-of-less-than-15m-length-overall>

4. Means of Escape

4.1 All escape routes are required to be properly marked, kept free of obstructions and usable. Regular inspections by the Master, Skipper or designated crewmember and recorded in the logbook should ensure that this is carried out. Also, the crew should be fully aware of and familiar with the escape routes.

4.2 When inspecting the means of escape the following should be considered:

- Are the escape routes clearly marked and well lit?
- Do all sleeping cabins have at least two separate means of escape to open deck?
- Is there a safe means of escape to shore?
- If a fire in one location could block the escape, is an alternative available?
- Are all doors and hatches in good working order and can they be easily opened, at least from the inside?
- Are fire doors self-closing or kept closed? (Note: unapproved holdbacks should be removed only electromagnetic holdbacks linked to the fire detection system are acceptable)

5. Shore Power

5.1 When the vessel is operating on shore power the following should be considered:

- Are any safety systems (e.g. fire/gas detection) not working and are there alternatives?
- If the vessel is relying on shore power for basic safety systems, is it safely installed with appropriate circuit breakers and sufficient for the necessary services all working together for safety, such as fire pumps and fire and gas detection systems, as well as any additional loads for domestic services, such as heating, lighting and ventilation?
- Is it reliable?
- If the shore power fails when the crew are asleep will they know?
- Can the live aboard crew change over onto ship's power?

5.2 If the crew are having problems contacting the relevant harbour authority about any of the above points or have concerns over their ability to evacuate or reach their vessel this should be discussed with that authority.

6. Fire Precautions

6.1 The following points should be considered when assessing the risk of fire:

- If heaters are provided, are they safe?
- Wherever possible LPG and diesel open flame or catalytic heaters should be avoided. If these are permitted and installed, is the installation in compliance with MGN 312 (F) (storage of gas and mechanical ventilation)?
- Have heaters been regularly serviced?
- Are gas and carbon monoxide detectors provided?
- Are other heaters clearly away from combustible materials?
- Is the ventilation working (a check should be made to ensure that the crew have not tried to block them up)?
- Are fire dampers including external ventilation flaps in working order?
- Are unapproved cooking or heating appliances being used (e.g. some crew have been found cooking with portable gas cookers in their cabins)?
- Free standing heaters should not be used.
- Are all electric appliances safe, with correct wiring, fuses (e.g. radios, TV's, toasters, kettles, phone chargers etc.)?
- Have the crew been familiarised with these basic safety precautions, including their escape routes and safety systems?
- Are fire extinguishers available, serviced and ready for immediate use?

- Have the crew been instructed in how to start a fire pump?

6.2 Refer to The Code of Practice for the Safety of Small Fishing Vessels of less than 15m Length Overall Section 5.4 Fire Prevention for further guidance.

www.gov.uk/government/publications/mgn-312-liquid-petroleum-gas-and-diesel-fueled-appliances-on-fishing-vessels

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